

23STCV22258 23STCV22258

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-01

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C09%2F01%2F2026

Source SHA-256: 71401c581e4864e456ce2eb99dbd3de68ca6b5fffc5d5dc39c2e2c86a862d907

Case Number: 23STCV22258 Hearing Date: September 1, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 17

TENTATIVE

RULING

NICOLE SULLIVAN

vs.

COUNTY OF LOS ANGELES, et al.

Case

No.: 24STCV00112

Hearing Date: September 1, 2026

Defendant's demurrer to the FAC is OVERRULED IN PART, SUSTAINED IN PART. Defendant's demurer is OVERRULED as to the third cause of action, but SUSTAINED, WITHOUT LEAVE TO AMEND, as to the fourth cause of action.

On 1/2/2024, Plaintiff Nicole

Sullivan (Plaintiff) initiated this action. On 8/14/2026, Plaintiff filed a

first amended complaint (FAC) against County of Los Angeles, Los Angeles County

Sheriff's Department, Detective Miguel Jimenez-Ramirez, Sergeant Jose J. Rojas,

and Deputy Heather N. Cornea, alleging: (1) violations of 42 USC section 1983; (2) negligence per se; and (3) intentional infliction of emotional distress (IIED).

On 5/8/2025, Defendant demurred to a first amended complaint (FAC) purportedly filed on 11/4/2024. However, no such filing appeared in eCourt, and without a copy of the FAC, the Court was unable to assess the sufficiency of Plaintiff's pleadings.

Despite a Court order on 7/20/2026, to file a copy of the FAC within 1 day of entry of the order, Plaintiff did not file the FAC until 8/14/2026. Plaintiff's counsel is to abide by filing deadlines, or face sanctions moving forward.

Now, with a copy of the FAC provided, the Court turns its analysis to Defendant County of Los Angeles, Detective Miguel Jimenez-Ramirez, Sergeant Jose J. Rojas, and Deputy Heather N. Cornea's (collectively, Defendants) demurrer to the third and fourth causes of action.

Discussion

Defendants demur to the third and fourth causes of action on the grounds that they fail to state sufficient facts to support a claim upon which relief can be granted.

As for the third cause of action for negligence per se, a fundamental principle of the California Government Tort Claims Act is that public entities are liable only to the extent provided by statute. (Gov. Code § 815, subd. (a).) Here, Plaintiff's claim is based on Defendants' alleged violation of Government Code sections 26202.6 and 34090.6. These statutes require that "the head of a department of" a city or county preserve for a year "routine video recordings" maintained by said department, of "regular and ongoing operations of the department." (Gov. Code §§ 26202.6 and 34090.6.) Plaintiff alleges that due to the County's breach of its duty to preserve the recording for a year, the "state court remedies that could and would have been available to [Plaintiff] through the District Attorney's Office became subsequently ineffective." (FAC., ¶ 38.)

A claim for negligence per se requires a valid underlying cause of

action for negligence. (Millard v. Biosources, Inc. (2007) 156 Cal. App. 4th 1338, 1353.) "The existence of a duty of care owed by a defendant to a plaintiff is a prerequisite to establishing a claim for negligence." (Nymark v. Heart Fed. Savings & Loan Assn. (1991) 231 Cal.App.3d 1089, 1095.) In negligence per se actions, statutes may be used to establish a duty of care. (Elsner v. Uveges (2004) 34 Cal. 4th 915, 923; Evid. Code § 669.) However, a statute may only be used to establish a legal duty if the injury at issue resulted from an occurrence of the nature which the statute was designed to prevent; and the person suffering the injury to his person or property was one of the class of persons for whose protection the statute was adopted. (Cal. Evid. Code § 669(a); Ramirez v. Nelson (2008) 44 Cal. 4th 908, 917–18; Spriesterbach v. Holland (2013) 215 Cal. App. 4th 255, 263–64.)

Defendants argue that "[t]here is no existing legal authority to suggest that California Government Code sections 26202.6 and 34090.6 were enacted to prevent the injury Plaintiff alleges she suffered here—i.e., to prevent a loss of recordings that could be evidence for use in the prosecution of a crime," and that "Plaintiff is not a member of the general class of persons the legislature intended to protect when it enacted these statutes." (Demurrer, 6: 19-24.)

In support, Defendants point to Victor Valley Union High School District v. Superior Court of San Bernardino County (2023) 91 Cal. App. 5th 1121. There, the plaintiff argued that a school district breached its statutory duty delineated in Government Code section 53160—a mirror image to Government Code sections 26202.6 and 34090.6—by automatically erasing recordings every 14 days and failing to preserve a video of plaintiff's sexual assault on school grounds. The court rejected the argument: "[Plaintiff] cite[s] no authority for the proposition that they are members of the general class of persons the Legislature intended to protect when it enacted Government Code section 53160, and we have found none." (Id. at p. 151.)

However, as noted by Plaintiff in opposition, Victor Valley is distinguishable from the present case as it pertains to sanctions/spoliation claims relating to the destruction/deletion of video recordings controlled by a school district pursuant to Government Code section 53160, something Plaintiff has not yet addressed or claimed. The court there "agree[d] that a party may be under an explicit statutory or regulatory duty to preserve evidence, and that, in an appropriate case, breach of that

duty may result in some form of sanction.” (Victor Valley, *supra*, at p. 1149.) The Victor Valley court acknowledged that “Gov. Code, § 26202.6 [was] the city and county analog to § 53160,” and it held that the school district “was under a duty to preserve evidence when the video was erased.” (Id. at p. 1152.) As such, Victor Valley is distinguishable as it focused on the issues of sanctions and spoliation of evidence, which are not currently before this Court.

By contrast, in *Nelson v. Superior Court* (2001) 89 Cal.App.4th 565, 570, the plaintiff utilized the government tort claims statutes to make a claim against the County based upon the death of her son while he was in police custody. (Id. at p. 572.) After filing suit against the County and other defendants, however, the defendants were unable to produce radio transmissions pursuant to Gov. Code section 26202.6 even though the County was put on notice of the plaintiff’s claim, twenty-eight days after the death occurred. The Court in *Nelson* held that it “believe[d] the Legislature intended that, in civil cases, a “claim” filed in compliance with section 911.2 constitutes a “claim” within the meaning of section 26202.6, and triggers the obligation to preserve the recordings covered by section 26202.6 until the ‘claim filed or any pending litigation’ is resolved.”(Id. at p. 574.)

Here, looking at *Nelson*, and particularly at the pleadings stage, the Court cannot conclude that Plaintiff has not alleged facts which could show that Defendants owed a duty to Plaintiff and that that duty was breached.

As for the fourth cause of action for IIED, Defendants argue that Plaintiff has not alleged facts which could show its conduct was extreme or outrageous. The Court agrees. In a claim for IIED, the “defendant must have engaged in conduct intended to inflict injury or engaged in with the realization that injury will result.” (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001.) According to the FAC, by the time Plaintiff reported her assault at the courthouse to Deputy Cornea, the video had already been automatically overwritten a month before. As such, even accepting Plaintiff’s allegations as true, they could not show that any defendant failed to preserve the video with the intent to inflict Plaintiff’s alleged injuries.

Based on the foregoing, Defendant’s

demurrer to the FAC is overruled in part, sustained in part. Defendant's demurer is overruled as to the third cause of action, but sustained, without leave to amend, as to the fourth cause of action.

It is so
ordered.

Dated:
September , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.